

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

QVC, INC. AND CORNERSTONE BRANDS, INC., *Complainants*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-09

Serviced: May 18, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING JOINT MOTION TO EXTEND DEADLINES

On May 15, 2026, the parties filed a Joint Report and Motion to Extend Deadlines seeking an extension of approximately three months of the current discovery and briefing deadlines. (“Joint Report”) (Dkt. 23.) Because the parties indicated in their original joint status report that additional time may be necessary to complete discovery, the current scheduling order directed the parties to file a Joint Status Report regarding discovery no later than May 15, 2026, which the parties complied with. The stated impediments to discovery include the exceptionally large volume of responsive documents identified, the need for the parties to identify, review and produce a large quantity of ESI requiring the use of third-party vendors to collect, search, and host data, and the fact that both witnesses and documents are located in foreign countries, creating logistical complications and requiring the application of foreign law. The Joint Report details the discovery conducted to date, identifies the remaining discovery not yet completed, and states that the current schedule would not allow the parties sufficient time to prepare their claims and defenses. For the reasons set forth below, the joint motion to extend deadlines is **GRANTED**, and the parties are directed to follow the amended schedule in this Order.

In their Joint Report, the parties state that:

- Complainants made an initial production of 13,367 documents to Respondent on March 6, 2026. Complainants made a second production of 4,135 documents on March 16, 2026. Complainants are in the process of reviewing documents for privilege, and plan to make additional productions and to produce a privilege log to Respondent. (Joint Report at 2.)
- Respondent has met with its vendor on a weekly basis to discuss the ESI Protocol, the collection and ingestion of additional electronic documents and data, searches of relevant data, and review of this data for production. Respondent completed an initial search to identify over 850,000 potentially responsive documents collected from selected custodians and electronic files. Notwithstanding its continuing efforts, Respondent has not been able to start producing documents to Complainants until March 29, 2026, when it produced 3,427 documents to Complainants. Respondent has

produced a second set of 646 documents to Complainants on May 11, 2026. At the same time, Respondent continued to work diligently with its vendor to be able to continue producing documents to Complainants. Due to the volume of initially collected documents and the specific issues involved in this matter, multiple rounds of review and improvement of a generative AI review prompt was necessary to identify responsive documents. Respondent gave instructions to its vendor to run the final review prompt on roughly 400,000 remaining potentially responsive documents on May 13, 2026. Accordingly, an additional large production of documents is expected to be finalized for delivery within the next 2 weeks. At that point in time, Respondent expects its production of documents to be substantially completed. Smaller productions of those responsive documents requiring redactions and a log of privileged documents will follow. (Joint Report at 2-3.)

- Once the document productions are completed, the parties will need the time to review the voluminous batches of documents produced and prepare to take depositions. The current request for extension is based on the pace of the production to date using all resources available. (Joint Report at 3.)
- Good cause for an extension exists given the substantial volume of responsive documents identified, the need for thorough review, and the pace at which review that can be reasonably be accomplished in order to ensure that neither party is prejudiced. (Joint Report at 4.)
- Absent an extension, the parties would not be able to prepare their claims and defenses adequately in advance of anticipated depositions, briefing, and any oral hearing scheduled. (Joint Report at 5.)
- The parties will continue to endeavor to adhere to the ordered schedule, but the sheer volume of documents may make for an impossible situation as is the case now. Other reasons may include issues arising from the collection and production of documents located abroad or in the custody of non-parties, the need for significant party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. (Joint Report at 5.)
- An extension of the deadlines is necessary to allow the parties a fair opportunity to review and conclude their respective production of documents, review such productions from the opposing party or third parties, depose each other's respective fact and expert witnesses, and assess any additional discovery. The parties will attempt to avoid requesting further extensions and, to the extent motions are needed, will raise them promptly and, where possible, file them jointly. (Joint Report at 6-7.)

Based on the representations in the joint motion to extend deadlines, I find that the parties have established good cause to modify the schedule as requested. The record shows that that the parties have worked diligently to conduct discovery in a complex and document intensive proceeding requiring extensive production of ESI and document review for responsiveness,

confidentiality, and privilege. It also shows that counsel have cooperated well with one another to meet existing deadlines despite a number of obstacles beyond their control, including technical issues inhibiting document production. As an example, counsel worked out an agreement between themselves rather than delay discovery when I was unavailable during the government shutdown last year to resolve a discovery dispute. Given this history of working cooperatively to comply with established deadlines, counsel's stated need for additional time must be viewed in the context of the diligence they have demonstrated to date. Counsel are directed to continue to cooperate with one another and use their best efforts to avoid the necessity of additional extension requests. The parties are hereby **ORDERED** to follow this schedule:

Event	Deadline
Substantial completion of productions of documents and ESI in response to initial RFPs	05/29/2026
Joint Status Report 2 regarding discovery	06/15/2026
Complete depositions of fact witnesses	07/14/2026
Last day to serve interrogatories, requests for admission, and RFPs	07/14/2026
Joint Status Report 3 regarding discovery	07/27/2026
Disclosure of initial expert reports, if any	08/14/2026
Disclosure of rebuttal expert reports, if any	08/28/2026
Last day to respond to interrogatories, requests for admission, and RFPs	09/03/2026
Close of fact discovery	09/03/2026
Complete expert depositions and all discovery	09/18/2026
Complainant's initial brief, proposed findings of fact, and appendix	10/20/2026

Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	11/19/2026
Complainant's reply and responses to proposed findings of fact	12/04/2026

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically meet other deadlines in the proceeding. If a motion could impact on other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension.

MARY A.
HERVEY -S

Mary Apostolakos Hervey
Administrative Law Judge

Digitally signed by MARY A.
HERVEY -S
Date: 2026.05.18 14:22:04 -04'00'